

Tape Notes

These are my comments on **Side A** of the tape. This conversation with Fred was taped on my answering machine on July 7, 1992. I have included the approximate time of the comments on the tape. The main thrust of this conversation is that Fred wants me to come to [REDACTED]'s office and sign a settlement. I do not want to go, especially after being threatened. Instead, I want to have the information sent to me, so I can check it out.

We had talked for about 15 minutes or so, and I had discussed several of Fred's accounting discrepancies. Fred had no rational explanation for them. He got angry, and threatened me. It was at this point that I began to record the conversation. This side runs about 18 minutes 45 seconds.

- 00:00 I began taping after Fred threatened me. Fred granted permission to tape, calmed down a little, and changed the subject.
- 02:00 Fred makes his claim about mom sending me money for the closing on my home. Please note that in [REDACTED]'s letter of 05/07/92, the claim was for \$15,000. After Fred received the copy of my closing statement (which shows much lower closing costs), the claim has changed to \$8,000. Since the amount has changed, somebody is fibbing. He also claims Darlene (Fred's first ex-wife) saw the checks made out to me. He has already checked for withdrawals at First Federal, which is where mom had most of her money, without any results. If this rumor is Fred's basis for cleaning out the bank account funds, then why is he only now checking to see if the rumor is true?
- 03:45 Fred had not received the copies of my pay stub showing the retirement funds that were returned to me, as the source of my down payment. Apparently, Fred did not think I had another source for the closing money, and it surprises him. He quickly changes subjects.
- 05:30 Fred is trying to goad me into coming and making a quick settlement without an accounting. Please note that I never mention the words "mall" or "kiddies". This becomes kind of a running theme for Fred. I feel it's just slandering me to our relatives. After being threatened, I do not want Fred to know my family's plans.
- 09:00 Fred says he is ready to stand before the judge.
- 11:00 Fred acknowledges that he threatened to beat me up earlier in the conversation. Please note the "Not until you get really, really irritating." There is no way I am going to get into a confrontational meeting with someone hostile who wants to beat me, or worse. Fred has a copy of my 95+ page documentation, and access to the information on the funds in Greenfield. He certainly is capable of doing the accounting correctly.
- 12:00 Fred tells me I'm going to be really sorry if he finds that Darlene is telling the truth about the money. Since that could be taken as another threat, I get him to explain.
- 12:45 Fred says "I hope your house insurance is thoroughly paid up." I take that as another threat against my home and family.
- 13:45 Fred again says he's ready to go to court. He has certainly put on the brakes since July 1992.
- 18:00 Fred makes some very insulting remarks about my wife, and hangs up.

These are my comments on **Side B** of the tape. This conversation with Fred was taped on my answering machine on Monday March 22, 1993, starting around 9 PM. I have included the approximate time of the comments on the tape. This side runs about 30 minutes.

The first part of the tape got erased by another message coming in on my answering machine. We had identified ourselves, and given permission to tape. Fred then started his explanation of his claims of "verbal agreements". Basically, this part is a monolog by Fred.

00:00 Fred admits to having had financial trouble. He claims I talked him into splitting the money and we could trust each other. Apparently, Fred wants to claim I OK'd the things he did.

00:50 The second claim is that I acted improperly by using the joint account for the estate. I do not believe anything I did would excuse Fred's actions.

He is claiming RFCU has \$7103.12. From Mr. [REDACTED] inventory, the RFCU balance in January 1993 was \$5,181.60.

I think his claim to have the RFCU funds of \$7,103.12 matching almost to the penny in his and Mr. [REDACTED] accountings is truly amazing. For Fred's and Mr. [REDACTED] accountings to match would mean 1 of 3 possibilities: 1) Nothing came into the RFCU account from April 1992 (Fred's accounting) until January 1993 when Mr. [REDACTED] did his. 2) Fred is psychic, and could predict the interest and Cleveland payments that did come into the RFCU account. 3) Fred's lying. Also note that Fred's figure is off by quite a bit from the actual RFCU balance, so again Fred is being untruthful.

I think that Fred is trying to claim the \$ 7,103.12 "Interbank transfer" shown on Mr. [REDACTED] accounting is the RFCU balance. It's possible that he refers to the \$ 7,861.61 on his 04/08/92 accounting - "This is the amount of monies that Eddie had under his control and must have distributed to himself." That's off by only 75,849 pennies, if you ignore all the other items in the RFCU account.

01:55 Fred claims that I did not furnish records. He certainly can't claim that after receiving the 95+ page documentation. As for before that, where are his letters of complaint to me, or [REDACTED]? He said without the records, it's hard to establish the money to disburse and who gets what. That would seem to be a contradiction to his claim that I OK'd the way he split the money. Certainly, if Fred had problems establishing the amounts to disburse, no disbursements should have taken place until those amounts were established. Fred hasn't done very well even with the records. In any case, it appears from the accounting that Fred pocketed most of the bank accounts.

02:15 Fred continues to claim that mom gave him \$10,000 as a gift. Nope, see the list of points to make.

03:10 Fred states that Uncle [REDACTED] is trying to stay unbiased and objective. Unfortunately, Uncle [REDACTED] has signed on the land sale checks, inventories and accounting. From my diary entry about his phone call of 08/18/92, he had not even looked at the documentation I provided. He is not acting in a neutral way. He could easily check out the figures himself. Signing the inventories (that changed wildly) and accounting without checking it out puts him on Fred's side. Uncle [REDACTED] should also have checked to make sure I got my half of the land sales.

03:25 I have several boxes of old papers sitting in my garage. If Fred did have them, he would still claim I took out the one page that he needed when nothing turned up. Fred would like to claim that I'm hiding information, but anything he needs would be available from the bank.

03:50 Fred claims that I should have met with him and Uncle [REDACTED] to settle, so this is my fault. There is no requirement for me to settle for whatever they want to give me. There is a requirement that they handle the estate properly. They could have examined my

documentation vs. theirs vs. the bank statements, and straightened this out through the mail or over the phone.

- 04:20 I would like to point out that my lawyer fees would be nonexistent if the executors had done their job from the beginning.
- 04:45 Fred states that he is not an accountant, but have you gone through the stunts he pulls on his figures in his March and April '92 accountings? I've got lots of comments in my list of points to make.
- 05:20 Fred thinks I should share some fault too. The only problem is that I haven't done anything wrong.
- 05:45 Fred has signed a disclaimer for Uncle [REDACTED] and [REDACTED]. So what?
- 06:05 Fred claims it took lots of time to get the money freed up from his house. This has no affect on making an accounting, just for paying.
- 07:05 Fred says that he has done everything possible to settle.
- 07:20 Fred claims that I insisted on a professional accounting. Wrong! I understand that the accounting is something the executors are required to provide by law. I'd been trying to get Fred to do it right, or get the information and do it myself. My documentation could have been verified, and the information Fred controlled added to it properly. They simply needed to give an honest accounting. Sorry, but if they had done their job in the first place, that formal accounting would have been unnecessary. They should pay for it themselves, especially in light of the errors in it - see my objections.
- 07:40 Fred claims the accountant thought that Fred's accounting of April 1992 was good and fair for a layman. That's interesting, since Fred's did not include interest, the unknown deposit of \$1022.06, had incorrect figures for the Cleveland payments, and left off the water and electric refunds, among other things. In addition, it did not address the money that Fred took from the estate. How does Fred's accounting compare with the one I did?
- 08:30 Fred lays out his proposal for settlement. It does not include paying for my expenses incurred trying to get them to do their job as executors.
- 09:40 Fred tries to gain sympathy by pleading poverty. I have a real problem with someone who can squander his inheritance (and try to keep parts of mine) and still plead poverty.
- 10:05 Fred and Uncle [REDACTED] did not approve of me hiring my own attorney. So what? I am certainly entitled to legal assistance to straighten out the mess they made, and I believe I am entitled to damages.
- 11:00 The 50-50 split Fred talks is still basically what I'm asking. I just need to be reimbursed for the expenses racked up trying to get them to do right. I've tried to give them every opportunity to do right, and keep their expenses down.
- 11:20 Fred still does not want to pay my expenses. I don't feel Fred or Uncle [REDACTED] should be due any money for causing the problems and delays.
- 12:20 I was offered all the estate, and declined, since they would not include an accounting. It ought to be hard to paint me as greedy when I insist they simply do their jobs. Had I accepted that deal: 1) I might have been shortchanging Fred 2) I might have been shortchanging myself 3) Fred could tell the relatives how he just gave up his rightful inheritance to satisfy greedy old me, instead of just giving me my fair share that he'd been holding back.

- 13:00 Fred claims threats to his job and family. The only things that would make that possible are the legal consequences of his actions. He continues to try to play on my pity, or make it look like I did something wrong.
- 14:30 Fred says I told him "You can trust me. You've got nothing to worry about." I don't remember it, but if so, how did I do? Fred's accounting shows I've split evenly and paid the estate bills. I haven't shortchanged him one cent, and accounted for everything. That's acting pretty much like an executor should behave. Now, how did Fred do?
- 14:50 Fred says he was only trying to help me, since I needed the money. I can bring my bank statements from this time, and we can compare with Fred's. The extra money was nice, but I was getting along OK. Now had they done their paperwork in less than 8 months, I would not have needed to pay the bills or make distributions either. I really expected them to do that, as shown by the trips to Centerville I took. After several trips to make withdrawals to pay the bills, I finally just moved the whole account down to the credit union in Huntsville to stop having to make trips to Tennessee.
- 16:00 Now the monolog is over, and it's my turn. I decline his offer since it does not address my expenses. I point out some of the problems shown in his accounting.
- 17:30 Fred thinks the money from the RFCU account should be in Jerry's trust account. Did I miss some official request to move the money?
- 18:00 Fred claims I tried to assume executorship. I do not see anything wrong with paying the estate bills with estate money. The other money was split evenly, just like it was supposed to be. Everything has been accounted for. I believe I did a good job. If there is a technical problem, then I'll face the consequences. But regardless of anything I did, it certainly does not excuse Fred from doing his job properly.
- 19:00 Fred denies lying on the things he has written. Among many other times, Fred certainly lied when he made his accountings when he knew from my documentation that his figures did not match the bank statements. There is no agreement that he can lie on his inventories and accountings, but they are full of problems.
- 19:50 Fred still believes that I got money from mom toward my house. Even after his shifting stories are pointed out, he claims I'm sitting on the paperwork that would prove him right. There is nothing from the banks to back him up, only some checks made out to cash. See the questions.
- I'll point out only a simple problem aside from the changing stories. Now, if you're giving money to your child for a house down payment, do you go to the savings account that has sufficient money and get a cashier's check? Fred would say you get cash from your checking account, that keeps a relatively low balance. Mom did not have credit cards, her checks were direct deposited, and the way she made small purchases was with cash. She had to cash checks to get that cash. I assume these mysterious cash checks did not appear and disappear just for the time I was getting my house. There is nothing on my end to show any receipt of money, or in my actions that would show that I behaved as if I had any extra money. This is a truly pathetic attempt to justify his actions. Fred does know exactly how much I received from mom toward my house - nothing.
- 21:15 "Shopping was more important than settling the estate" - Fred said it, not me. See the notes about Side A of the tape. He's just slandering me to the relatives.
- 21:30 Fred talks about the threats, and thinks it cruel that I might think he would shoot me. See the notes on Side A. I mentioned my fears after he threatened to beat me. The pain in his life has been self-inflicted. I really do not feel responsible for his personal, marital, and financial problems.

- 22:50 Fred talks about what the judge will do. I guess we will now find out. He repeats his "best offer".
- 24:45 Fred talks about what his actions will show, and claims he sent good accountings. Fred claims that I'm the one who has been delaying since April 1992.
- 27:45 Fred does not remember agreeing to do the accounting in October 1992.
- 28:45 The "Unknown Deposit" of \$1022.06 on the accounting was discussed. Fred took money out and put money back. Now the only things withdrawals should be for paying estate bills and disbursements. There should be receipts or cancelled checks for those. The only things that should be deposited are estate assets. It seems clear to me that Fred was using the estate account in Greenfield as his own private funds. It ought to be interesting to see those bank statements to get the complete picture.
- 30:10 Fred claims I'm to blame since Mr. [REDACTED] did not get his release on time. Of course, Fred should have given that when the payment was made, back around December 1, 1990.

The original tape ran out here.